25VECV05942 25VECV05942

County: los-angeles

Division: Civil Law and Motion

Department: NWI

Hearing date: 2026-07-27

Motion: PLAINTIFF VERONA QUARTZ, INC.'S MOTION FOR ATTORNEY FEES AND COSTS PURSUANT TO CALIFORNIA CIVIL CODE 1794(d)

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Case Number: 25VECV05942 Hearing Date: July 27, 2026 Dept: NWI

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

COUNTY

OF LOS ANGELES

VERONA QUARTZ, INC,

Plaintiff,

vs.

GENERAL

MOTORS, LLC, a Limited Liability Company; DOES 1 through 10, inclusive,

Defendants.

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CASE
NO: 25VECV05942

[TENTATIVE]
ORDER RE: PLAINTIFF VERONA QUARTZ, INC.’S
MOTION FOR ATTORNEY FEES AND COSTS PURSUANT TO CALIFORNIA CIVIL CODE 1794(d)

Dept.
I

DATE:
JUNE 12, 2026

TIME: 8:30 A.M.

COMPLAINT
FILED: OCTOBER 10, 2025

TRIAL
DATE: MARCH 29, 2027

I. BACKGROUND

On October 10, 2025, Plaintiff Verona Quartz, Inc. (“Plaintiff”) filed a complaint against Defendants General Motors, LLC (“Defendant”) and Does 1 through 10 alleging the following causes of action: (1) breach of implied warranty under the Song-Beverly Warranty Act; (3) breach of express warranty obligations under the Song-Beverly Act; and (3) violation of the Song-Beverly Consumer Warranty Act.

On June 12, 2026, Plaintiff filed the instant motion for attorney fees.

On July 10, 2026, Defendant filed its opposition.

On July 13, 2026, Plaintiff filed its reply.

II. LEGAL STANDARD

A prevailing party is entitled to recover its attorneys’ fees when authorized by contract, statute, or law. (Cal. Code of Civ. Proc. § 1033.5(a)(10); Cal. Civ. Code § 1717(a).) “To ‘incur’ a fee, of course, is to “become liable” for it . . . i.e., to become obligated to pay it.” (Rope v. Katz (1995) 11 Cal.4th 274, 280.)

Courts begin with an independent review of the evidence to determine the reasonableness of the hours actually spent litigating the matter and to assess whether there was padding, overstaffing, duplication, or marked inefficiency. (Donahue v. Donahue (2010) 182 Cal.App.4th 259, 272.) The prevailing party who seeks fees and costs bears the burden of establishing entitlement to an award and documenting the appropriate hours expended and hourly rates. (Cristian

Research v. Alnor (2008) 165 Cal.App.4th 1315, 1320.) To that end, the Court may require a party to produce records sufficient to provide a proper basis for determining how much time was spent on particular claims. (Ibid.) The evidence should allow the Court to consider whether the case was overstaffed, how much time attorneys spent on particular claims, and whether the hours were reasonably expended. (Ibid.) The Court has discretion to award fees based on the attorney's declaration describing the work they have done and based on the judge's own view of the number of hours reasonably spent. (Syers Props. III, Inc. v. Rankin (2014) 226 Cal.App.4th 691, 698.)

III.

DISCUSSION

Plaintiff seeks a total of $12,824.43, consisting of (1) $8,415.00 in attorney's fees, (2) 1,567.93 in recoverable costs and expenses, (3) a lodestar multiplier of 1.1 in the amount of $841.50, and (4) an additional $2,000.00 for Plaintiff's counsel to facilitate the surrender of Plaintiff's vehicle, review Defendant's opposition, draft the reply brief, and attend the hearing on this motion.

Plaintiff has shown that it is the "prevailing party" for the purposes of Code of Civil Procedure section 1033.5 subdivision (a)(10) because the parties resolved the merits of this matter by executing a settlement agreement (hereinafter the "Agreement"). (Declaration of Navid Barahmand ("Barahmand Decl."), ¶ 3; Exhibit ("Ex.") A.) Pursuant to the Agreement, Defendant agreed to pay Plaintiff's attorney fees, costs, and expenses. (Barahmand Decl., ¶ 3; Ex. A.)

Pursuant to the Song-Beverly Consumer Warranty Act (the "Act"), a consumer "shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code § 1794(d).) This provision "requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable." (Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104.)

The trial court has
broad authority to determine the amount of a reasonable fee. (PLCM Group, Inc. v.
Drexler (2000) 22
Cal.4th 1084, 1095.) The party bears the burden of proof as to “reasonableness”
of any fee claim. (Code Civ. Proc., § 1033.5(c)(5).) The party seeking fees has
the burden of documenting the appropriate hours expended and hourly rates. (City of Colton v.
Singletary (2012) 206
Cal.App.4th 751, 784.) This burden requires competent evidence as to the nature
and value of the services rendered. (Martino
v. Denevi (1986) 182
Cal.App.3d 553, 559.)

An attorney's testimony as to the number of hours worked is sufficient
evidence to support an award of attorney’s fees, even in the absence of
detailed time records or billing statements, and there is no requirement that
such records or statements be offered in evidence. (Steiny & Co., Inc. v. California Electric Supply
Co. (2000) 79
Cal.App.4th 285, 293.) Ascertaining the
fee amount is left to the trial court’s sound discretion. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.) Moreover, “[t]here is ‘no mathematical rule
requiring proportionality between compensatory damages and attorney's fees
awards’, [Citation], and courts have awarded attorney's fees where plaintiffs
recovered only nominal or minimal damages.”
(Harman v. City and
County of San Francisco
(2007) 158 Cal.App.4th 407, 421.)

1. Reasonable Hourly Rates

Plaintiff’s counsel,
Navid Barahmand’s (“Mr. Barahmand”) hourly rates are as follows: in 2025, $400
and in 2026, $425. (Barahmand Decl., ¶¶ 8-9.)

In setting the hourly
rate for an attorney fees award, courts are entitled to consider the rate of
“fees customarily charged by that attorney and others in the community for
similar work.” (Bihun
v. AT&T Information Systems, Inc. (1993) 13 Cal. App. 4th 976, 997 [affirming rate of $450 per hour],
overruled on other grounds by Lakin

v. Watkins Associated Indus. (1993) 6 Cal. 4th 644, 664; see also Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009 [“[R]ate determinations in other cases, particularly those setting a rate for the plaintiffs' attorney, are satisfactory evidence of the prevailing market rate.”].)

Mr. Barahmand states that he has been practicing since December 2021 and he has been named in Super Lawyers magazine’s “Rising Stars” in 2024 and 2025. (Barahmand Decl., ¶¶ 6-7.) Mr. Barahmand is the founder of plaintiff’s firm. (Barahmand Decl., ¶¶ 6.) Mr. Barahmand’s rates have been approved by Los Angeles County Superior Court and San Diego County Superior Court throughout at least six cases. (Barahmand Decl., ¶¶ 8-9.) Defendant does not dispute Mr. Barahmand’s hourly rates and the Court finds these rates reasonable.

2. Time Spent on Litigation

Defendant requests the court reduce plaintiff’s hours by 9.9 hours, from 20 hours to 10.1 hours. Defendant argues that some of the hours claimed by Plaintiff’s counsel were not reasonably or actually incurred. Specifically, Defendant argues that Plaintiff’s counsel should not recover the following items: (1) 0.8 hours for pre-litigation work from October 13 to October 16, 2025, (2) 0.7 hours of the templated complaint from October 16, 2025 because counsel uses the same template for all his actions, (3) 0.8 hours for the templated discovery requests from April 10, 2025 because counsel serves identical templated discovery requests in all his Song-Beverly Act cases, (4) 7.6 hours for routine communication throughout the billing statement, and (5) a reduction of all anticipated fees for the review of Defendant’s opposition, the preparation of a reply brief, and for attendance at the hearing.

After reviewing Plaintiff’s counsel billing statement, the Court finds that the hours billed are reasonable and were necessary for the litigation of Plaintiff’s claims. However, Plaintiff’s counsel has not supported his claim for $2,000.00 in anticipated fees. Thus, the Court reduces Plaintiff’s attorney’s fee award by $2,000.00.

3. Multiplier

The lodestar amount

"may be adjusted by the court based on factors including (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award." (Bernardiv. County of Monterey (2008) 167 Cal.App.4th 1379, 1399, citing Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.) The purpose of any lodestar and the increase thereto "is intended to approximate market-level compensation for such services" and is entirely discretionary. (Ibid.) "The purpose of a fee enhancement is not to reward attorneys for litigating certain kinds of cases, but to fix a reasonable fee in a particular action." (Weeks v. Baker & McKenzie (1998) 63 Cal.App.4th 1128, 1171-72.)

Plaintiff argues that counsel is entitled to a lodestar multiplier of 1.1 because Plaintiff has taken this case on a purely contingency basis and the outcome achieved by Plaintiff is substantial, highlighting Plaintiff's counsel's skill. The Court finds that the results of this case are not exceptional and awarding a multiplier is not warranted because the action was not novel nor did it involve difficult or complex questions. Plaintiff has failed to show how this case is different from other lemon law actions or the extent to which it presented new or complex issues that made this case particularly difficult or risky to ligate. Furthermore, counsel is adequately compensated with their attorney's fees. Accordingly, the court denies the 1.1 multiplier.

4.
Costs and Expenses

Plaintiff requests $1,567.93 in costs. Plaintiff seeks the recovery of costs for filing and motion fees, service of process, and mediation fees. Defendant disputes these costs. Specifically, Defendant argues that Defendant should not be required to reimburse counsel for the $88.44 in expected filing fees for the motion for attorney fees or for the request for dismissal because counsel has not spent this amount yet. The Court finds that the cost for the motion for attorney fees is reasonable and recoverable and Plaintiff has since filed the motion. However, the Court denies Plaintiff's request for costs for the request for dismissal it "expects" to file and reduces the award of costs by $23.44.

Defendant also argues that the $21.76 for One Legal's fees should be struck because they are convenience fees for paying by credit card which could have been avoided by paying by ACH. The Court agrees and reduces the award of costs by an additional $21.76.

Defendant argues that the $150.00 for jury fees are not recoverable because the case never went to trial. Jury fees are allowable as costs under section 1032. (Code Civ. Proc., § 1033.5 subd. (a)(1).) Furthermore, Plaintiff had to pay the jury fees to preserve its right to a jury trial against Defendant and as such, the court finds that jury fees are warranted. (Naser v. Lakeridge Athletic Club (2014) 227 Cal.App.4th 571, 576.)

Accordingly, the Court grants Plaintiff's request for costs in the amount of $1,522.73.

IV.
CONCLUSION

Based on the foregoing, Plaintiff's motion for attorney fees is GRANTED in part and DENIED in part.

The Court grants attorney fees and costs in the total amount of 9,937.73, $8,415.00 in attorney fees and $$1,522.73 in costs and expenses.

Moving party to give notice.

Dated July 23, 2026 ___________________________________

Hon. Karen Moskowitz

Judge of the Superior Court